

allegations in the FAC and judicially noticed documents show that she was not an occupant of the Property at the time the UD Action was filed, and the Court must accept the FAC's allegations as true in evaluating a demurrer. (*Crowley, supra*, 8 Cal.4th at 672.) As such, the terms of the Release only apply to bar any claims of mold-related injuries suffered by "parties" Shelley and Landonn, and do not extend to bar any mold-related injuries suffered by Plaintiff because Plaintiff was not a party to the UD Action or Agreement.

Defendants then argue that the Release applies to bar Plaintiff's claims because the FAC alleges that Plaintiff is Shelley's daughter, and therefore an "heir" who is subject to the Release. Although the Agreement states that it is "binding upon and inure to the benefit of the parties hereto and their respective officers, directors, shareholders, owners, heirs, executors, administrators, assignees and successors in interest" (Agreement, ¶ 15), as discussed above, the terms of the Release only refer to any injuries suffered by the "parties." As such, the Agreement only bars Plaintiff from asserting claims for mold-related injuries suffered by Shelley and Landonn and does not bar Plaintiff from asserting claims for mold-related injuries that she suffered herself.

Given the above, the Court **OVERRULES** Defendants' demurrers because the terms of the Agreement and Release do not bar Plaintiff from asserting claims for mold-related injuries that she suffered from the Property.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502763	SABREE VS CREEK HOMES, LLC	DEFENDANT SUDMAN ENTERPRISES, INC. DBA MANAGEMENT ONE (ERRONEOUSLY SUED AS MANAGEMENT ONE PROPERTY MANAGEMENT) DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: See above.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2503073	GORMAN VS TROIA	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Defendants request for judicial notice – specifically, the Court takes judicial notice of:

1. The final decision in Hearing No. 104948966, adopted by the Department on February 22, 2024, a true and correct copy of which is attached as Exhibit 1.
2. The Department's Manual of Policies and Procedures, section 30-757, effective February 5, 2007, a true and correct copy of which is attached as Exhibit 2.
3. The Department's Manual of Policies and Procedures, sections 30-701 and

30-757, effective July 1, 2024, a true and correct copy of which is attached as Exhibit 3.

The Court SUSTAINS the demurrer with thirty-days' leave to amend. Traditional writs of mandate are available to compel public agencies to perform acts required by law. (CCP §1085; *Siskiyou Hospital, Inc. v. County of Siskiyou* (2025) 109 Cal.App.5th 14, 36.) To obtain relief, a petitioner must demonstrate (1) no 'plain, speedy, and adequate' alternative remedy exists [Citation]; (2) 'a clear, present, ... ministerial duty on the part of the respondent'; and (3) a correlative 'clear, present, and beneficial right in the petitioner to the performance of that duty.' " (*People v. Picklesimer* (2010) 48 Cal.4th 330, 339-340.)

The FAP seeks a determination, pursuant to CCP section 1085, that MPP 30-757.17 as it relates to protective supervision, is invalid and illegal. However, the FAP relates to the application of the regulation to a prior determination that predates an amendment to the regulation related to supervision. However, to state a claim for writ of mandate, the writ must allege a present ministerial duty to act. Therefore, the FAP does not state a proper claim for writ of mandate as it does not clearly address the implications of the current regulation in place. In addition, the FAP is arguably uncertain as it is not clear whether the writ is addressed to the current regulation in place. Accordingly, the Court SUSTAINS the demurrer with leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO BE RELIEVED AS COUNSEL AS TO INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO COMPEL PLAINTIFF MIGUEL MORENO'S RESPONSES TO THE EXCHANGE'S FORM INTERROGATORIES, SET ONE

Tentative Ruling: The Court CONTINUES these motions to August 25, 2026 at 8:30 a.m. to allow for an authorized person to continue to prosecute this action.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2505048	MORENO VS INTERINSURANCE EXCHANGE OF THE AUTOMOBILE CLUB	MOTION TO COMPEL PLAINTIFF MIGUEL MORENO'S RESPONSES TO THE EXCHANGE'S FORM INTERROGATORIES, SET TWO

Tentative Ruling: See above.